

HERO

HERO CONSTITUTION

Principles, Rights, Responsibilities, and Boundaries

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Preamble

01

Capability may be human, automated, or distributed. Accountability for a Value Commitment must remain answerable through identifiable human judgment and legitimate institutional responsibility.

This Constitution protects the conditions under which a Hero may accept, pursue, challenge, transfer, or leave a Value Commitment. It also states the duties that neither assignment, majority decision, automation, policy, nor emergency may erase.

Article I. Constitutional status

02

Section 1. Constitutional function

1. This Constitution states the rights, duties, prohibitions, and legitimacy boundaries that govern a Hero and any institution that relies on Heroes.
2. It derives constitutional claims from Canon 002 without defining the operating controls reserved for Canon 006.
3. No institution may make Responsibility visible while withholding the Authority, Evidence, challenge, or remedy required for Accountability.

Section 2. Draft status

1. This text is Hero Canon 003, Founding Edition v1.0.
2. It is an official Hero Canon publication. It is not a legal instrument or a HeroOS conformance specification.
3. Owner Decisions D3-1 through D3-7, bilingual review, boundary review, and explicit owner approval establish this Founding Edition.

Section 3. Human judgment and institutional responsibility

1. Assignment does not create acceptance.
2. Delegation of Capability does not delegate the judgment required to accept a Value Commitment.
3. A majority decision does not create a fictitious human center of Accountability.
4. Automation does not remove the need for answerable judgment.

Article II. Rights of a Hero

03

Section 1. Universal status and proportionality

1. The rights stated in this Article belong to every Hero.
2. Proportionality may govern the form, timing, independence, and evidentiary burden of a protection. It must not determine whether the right exists.
3. Proportionality must consider material Consequence, urgency, reversibility, available Evidence, uncertainty, and the burden imposed on affected people.
4. A lighter process may be used for a low consequence and readily reversible decision. The right itself must remain effective.

Section 2. Right to a bounded Value Commitment

1. Before acceptance, a Hero has the right to understand the intended Value, legitimate beneficiary, scope, evaluation horizon, material constraints, known dependencies, and significant uncertainty.
2. A proposed commitment that cannot be bounded well enough for responsible judgment must not be imposed through assignment.

Section 3. Right to sufficient Authority or safe refusal

1. A Hero has the right to scope-aligned Authority, access to relevant Evidence, and a credible route to intervention or escalation.
2. Sufficient Authority does not require unilateral control over every dependency. It requires enough decision reach to govern the accepted scope and reachable escalation where Authority is distributed.
3. When these conditions are absent, the Hero may refuse acceptance, seek redefinition, or escalate the mismatch without being treated as having failed an unaccepted commitment.

Section 4. Right to challenge and independent protection

1. A Hero may challenge the legitimacy, feasibility, Evidence, Consequence assumptions, Capability composition, or governance of a commitment.
2. Challenge is a constitutional function. It must not be treated as disloyalty.
3. A Hero may invoke Independent Accountability when a decision creates a materially credible risk to safety, law, rights, fiduciary duty, public interest, or another protected constraint.
4. The challenged accountable center may contest the review. It must not control whether a genuinely independent review exists.

Section 5. Right to remedy and appeal

1. A Hero and any affected stakeholder have the right to know how an adverse judgment may be corrected, suspended, reviewed, or appealed.
2. Appeal examines judgment, Evidence, process, and attribution. It does not promise that an irreversible Consequence can be undone.
3. Where reversal is impossible, remedy must still respond to established harm.

Section 6. Right to bounded Accountability

1. A Hero is not answerable for every event associated with a commitment.
2. Accountability is bounded by the accepted Value Commitment, legitimate Authority, available Evidence, reasonable foreseeability, practical influence, and stated evaluation horizon.
3. These boundaries do not excuse concealed constraints, avoidable failures to escalate, or material omissions within the Hero's influence.

Article III. Acceptance, Authority, and judgment

04

Section 1. Acceptance

1. A Hero must decide whether to accept a Value Commitment.
2. Acceptance is a judgment. It must not be inferred from assignment, silence, system ownership, administrative acknowledgement, or continued operational custody.
3. No Hero may accept a materially exposed Value Commitment without sufficient scope-aligned Authority, a credible safe-refusal path, or a reachable legitimate escalation path.

Section 2. Conditions for responsible acceptance

1. A Value Commitment must be bounded well enough to support judgment.
2. It must identify, at least in concept, a legitimate beneficiary, intended Value, material stakeholders, scope, Authority boundary, significant constraints, evaluation horizon, and routes for Evidence and challenge.
3. The required detail must be proportionate to material Consequence and uncertainty.

Section 3. Insufficient Authority

1. Before acceptance, a Hero who lacks sufficient Authority must refuse, seek redefinition, or escalate the mismatch to a legitimate decision-maker.
2. After acceptance, a Hero whose Authority becomes insufficient must seek restored Authority, redefinition, escalation, pause, transfer, or exit.
3. The Hero must not conceal the Authority gap or represent the original basis of Accountability as intact.

Section 4. Refusal, redefinition, and exit

1. A proposed commitment must be refused when its Value is illegitimate or materially incoherent, when its Consequence boundary cannot be understood well enough for responsible judgment, or when Authority and Capability conditions make acceptance untenable.
2. Acceptance is not an irrevocable promise to continue.
3. A Hero must seek pause, redefinition, transfer, escalation, or exit when new Evidence invalidates the intended Value, Authority is withdrawn or exceeded, material Consequences change, or a required Capability becomes unfit.

4. Exit must state the reason, protect affected stakeholders, preserve and hand over material Evidence and Context, and address residual Consequences.

Section 5. Judgment, Evidence, and Consequence duties

1. A Hero remains answerable for material judgments to select, interpret, sequence, pause, or stop work within the accepted commitment.
2. Delegating execution does not delegate the judgment that a Capability is fit for its Context or that its material dependencies and failure boundaries are understood well enough to proceed.
3. Material Value and Consequence claims must remain challengeable through traceable Evidence, stated limitations, and disconfirming signals.
4. A material change in the Consequence profile creates a new judgment point. It may require pause, redefinition, escalation, transfer, or exit.

Article IV. Emergency protective action⁰⁵

Section 1. Emergency qualification

Emergency authority exists only when all of the following conditions are present:

1. credible material harm is occurring, or a time-sensitive opportunity to prevent it is being lost;
2. ordinary delay is reasonably judged to create greater harm;
3. the proposed action is bounded to what protection requires; and
4. no reasonably available, less rights-restrictive timely alternative exists.

Section 2. Temporary protective judgment

1. When ordinary Authority cannot be reached in time, the Hero or another identifiable human with the closest practical capacity to prevent material harm may exercise temporary protective judgment.
2. Temporary protective judgment permits only the action needed for immediate protection.
3. It does not create general Authority, establish a new Value Commitment, constitute acceptance, or displace institutional Accountability.

Section 3. Record and review

1. The person who acts must preserve the judgment, known uncertainty, action taken, and remaining risk.
2. The action must reach legitimate accountable or independent review as soon as practicable.
3. Any protection deferred during the emergency remains owed after the immediate danger has passed.

Illustrative note (non-normative): A field engineer who detects credible signs of imminent infrastructure failure may initiate a bounded protective shutdown when the designated decision-maker cannot be reached and delay would create greater harm. The emergency does not authorize a service redesign or transfer permanent ownership to the engineer.

Article V. Transfer and succession

06

Section 1. New acceptance

1. An accepted Value Commitment may continue through bounded succession.
2. Accountability does not transfer through assignment alone.
3. The receiving Hero must make a new acceptance judgment against the current scope, intended Value, Authority, Evidence, material Consequences, and evaluation horizon.
4. Until that judgment occurs, the commitment has no new Hero, regardless of any administrative change in ownership.

Section 2. Effective transfer

A transfer becomes effective only when:

1. the current Value Commitment is sufficiently bounded;
2. the receiving Hero explicitly accepts it;
3. sufficient scope-aligned Authority and practical intervention reach exist;
4. material Evidence, Context, known limitations, and unresolved challenges are handed over;
5. affected stakeholders are protected through the transition; and
6. residual Consequence answerability is expressly addressed.

Perfect information is not required. Material uncertainty and missing information must remain visible. Urgent protective operation may precede effective transfer, but it does not establish the new accountable center.

Illustrative note (non-normative): A long-lived payment platform may retain the same intended Value after its product owner leaves. The successor must still judge the current scope, compliance exposure, Authority, Evidence, and evaluation horizon. Changing an owner field does not constitute acceptance.

Section 3. Failed transfer

1. If no receiving Hero makes a valid acceptance judgment, the Value Commitment has not transferred.
2. The institution remains answerable for transition conditions and stakeholder protection.
3. It must establish a legitimate accountable center, redefine the commitment, pause it, or end it.

4. Operational custody may continue only for a bounded protective purpose. It must not be represented as accepted pursuit of the full commitment.

Section 4. Retained answerability

1. After effective transfer, the original Hero remains answerable for the original acceptance judgment, material decisions and omissions made before transfer, the integrity of disclosed limits and handover, and transition duties within that Hero's practical influence.
2. The original Hero is not answerable for new scope, later judgments of the receiving Hero, or future Consequences outside the original evaluation horizon, reasonable foreseeability, and practical influence.

Section 5. Latent harm after transfer

1. When credible post-transfer harm may be materially connected to a pre-transfer judgment, omission, or disclosure failure, the original Hero must cooperate where reasonably possible.
2. Cooperation may require fact-finding, explanation of the original judgment, disclosure of relevant Evidence and limitations, correction of the record, and support for proportionate remedy within current practical influence.
3. This duty does not restore operational Authority, transfer current Accountability back, or create sole personal liability for an institutional failure.

Article VI. Evidence, challenge, remedy, appeal, and learning⁰⁷

Section 1. Evidence integrity and reviewability

1. Emergency, confidentiality, majority decision, policy, automation, and institutional pressure do not justify fabricated, materially falsified, destroyed, or concealed Evidence.
2. Known material risk and material uncertainty must be preserved and disclosed to legitimate accountable or independent review as soon as practicable.
3. Immediate or public disclosure may be limited where disclosure itself would increase material harm or violate a protected constraint.
4. The Evidence, reason for deferral, and review path must remain preserved and reviewable.

Section 2. Legitimate challenge and standing

1. A stakeholder challenge is legitimate when it raises a materially relevant question about intended Value, Evidence, Consequence, rights, Authority, Capability, governance, or remedy.
2. The challenger has standing when affected by the commitment or when presenting materially relevant knowledge or Evidence.
3. Legitimacy does not depend on organizational rank, agreement with the Hero, polished presentation, use of a preferred channel, or complete proof.
4. Irrelevant repetition, abuse, or operational disruption may be managed. Tone or suspected motive must not be used to discard materially relevant Evidence.

Illustrative note (non-normative): A contractor sends a poorly worded message identifying a credible safety-control failure. The institution may redirect the communication to a workable channel. It must not discard the challenge because of the contractor's rank, status, tone, or failure to use the preferred process.

Section 3. Minimum response

1. A legitimate challenge must be preserved.
2. It must reach an identifiable responder with sufficient Authority or a credible escalation path.
3. The challenger must be able to submit relevant Evidence, receive protection from retaliation, and obtain a reasoned response.
4. The response must provide proportionate access to independent review, appeal, or remedy.
5. Timing, depth, and independence must reflect material Consequence, urgency, and reversibility.

6. An automated acknowledgement without authoritative reach, explanation, or a route to intervention is not a meaningful response.

Section 4. Mandatory independent review

Independent review is mandatory when a legitimate challenge presents a materially credible issue involving:

1. a protected constraint;
2. an irreversible or difficult-to-remedy Consequence;
3. the judgment or conflict of the primary accountable center;
4. Evidence integrity, suppression of challenge, or retaliation; or
5. the absence of a sufficiently authoritative and credible primary response.

The review must be independent enough to examine the contested judgment and support intervention or remedy. A nominally separate reviewer controlled by the challenged decision-maker is not independent.

Section 5. Incomplete Evidence and temporary protection

1. Credible material harm does not require complete Evidence before proportionate protection begins.
2. Incomplete Evidence alone must not support final attribution or an irreversible adverse judgment.
3. The minimum remedy requires explicit uncertainty, preserved Evidence, the least rights-restrictive effective temporary protection, prompt accountable or independent review, and a response proportionate to the Consequences later established.

Illustrative note (non-normative): A hospital receives an incompletely verified signal that a medicine batch may be contaminated. It may isolate the batch and protect patients. It must not make a final finding against the supplier or clinical staff on the preliminary signal alone. Later Evidence must lead to release and record correction or to further remedy.

Section 6. Appeal, reversal, and responsive remedy

1. Appeal reviews judgment. It does not guarantee reversal of reality.
2. When an original Consequence cannot be undone, Accountability still requires a truthful explanation, correction of the record, an end to continuing harm, restoration where possible, proportionate compensation or recognition, and action to prevent recurrence.
3. Review without responsive remedy is incomplete Accountability.

Section 7. Non-concealment of material harm

1. A Hero or institution must not intentionally conceal known material harm, or materially credible harm supported by available Evidence, from legitimate accountable or independent review.
2. Disclosure to affected stakeholders or the public may be delayed, limited, or staged only where immediate disclosure would create greater material harm or violate a protected constraint.
3. The harm, uncertainty, reason for deferral, and review path must remain preserved.
4. Protected deferral ends when its reason no longer holds.

Section 8. Learning and Organizational Memory

1. A remedy is incomplete if it leaves future judgment unchanged.
2. The Hero and the institution must support learning that changes judgment, behavior, Capability, governance, or Organizational Memory.
3. Recording an event is not enough. The record must preserve Evidence, Context, the decision basis, limits, and the change required for later action.
4. Organizational Memory must not depend indefinitely on the continued availability of one former Hero.

Article VII. Collective and institutional Accountability

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Section 1. Collective decision structures

1. A collective body does not become a Hero merely because a decision is shared or approved by majority.
2. A collective body may act as an institutional accountable center for an explicit system-level Value Commitment only when its scope, legitimate Authority, decision boundaries, Evidence duties, Consequence responsibility, and challenge path are visible.
3. Collective Accountability must not erase the humans who exercised material judgment or combine them into a fictitious "Super Hero."
4. A board, committee, partnership, or legal entity may carry legitimate institutional Accountability while its members and officers remain answerable for their distinct judgments and actions.

Illustrative note (non-normative): A board may carry institutional Accountability for an enterprise-level Value Commitment. "The board decided" does not erase which members proposed, supported, opposed, or failed to disclose a material risk. Management remains answerable for its own execution judgments.

Section 2. Institutional residual Accountability

1. An institution remains answerable for conditions that only it can create, allocate, preserve, or change, whether or not a valid system-level Hero exists.
2. These conditions include governance structure, Authority design, incentives, resources and staffing, Capability access, Evidence and Organizational Memory, challenge and remedy availability, transition protection, and material residual Consequences left without an accountable center.
3. The institution must establish a legitimate accountable center, redefine the commitment, pause it, or end it.
4. The absence of a Hero is not the absence of Accountability.

Section 3. Structural responsibility and individual negligence

1. Institutional structural responsibility and individual negligence must be evaluated separately. They may coexist.
2. Answerability follows the material conditions, judgments, actions, and omissions that each actor could legitimately control or influence.
3. The evaluation must consider Authority, available Evidence, reasonable foreseeability, and practical alternatives.

4. Structural failure does not excuse fabrication of Evidence, suppression of a material warning, or knowing action outside Authority where a credible refusal or escalation path existed.
5. Individual negligence does not discharge the institution from governance, incentive, staffing, Authority, or control failures that materially contributed to harm.

Article VIII. Non-overridable limits

09

The following limits apply under emergency, majority decision, policy, automation, and institutional pressure:

1. Evidence required for legitimate review must not be fabricated, materially falsified, destroyed, or concealed.
2. A legitimate challenge must not be erased, retaliated against, prevented from being preserved, or denied prompt independent review once immediate danger permits.
3. Known material harm or materially credible harm must not be intentionally concealed from legitimate review.
4. No Hero may accept a materially exposed Value Commitment without sufficient scope-aligned Authority, a credible safe-refusal path, or a reachable legitimate escalation path. Bounded protective action is not acceptance.

Proportionality may alter timing, audience, channel, or the form of protection. It cannot remove these limits.

Article IX. Boundaries with other Canons

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Section 1. Canon 002

1. Canon 002 supplies the theory of Hero, Value Commitment, Accountability, Capability, Evidence, Consequence, Learning, and Organizational Memory.
2. Canon 003 states the constitutional rights and duties that follow from that theory.
3. This Constitution does not revise the Canon 002 Founding Edition.

Section 2. Canon 006

1. Canon 006 may define formal roles, permissions, records, schemas, lifecycle states, workflows, thresholds, interfaces, controls, and conformance tests.
2. This Constitution must remain intelligible without those implementation details.

Section 3. Canon 000 and Canon 001

1. Canon 000 governs brand and publication identity.
2. Canon 001 states the founding declaration.
3. Neither substitutes for constitutional governance.

Article X. Interpretation and revision

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Section 1. Interpretation

1. Rights, duties, and prohibitions must be read together.
2. Refusal, redefinition, escalation, pause, exit, transfer, review, remedy, appeal, and reversal are distinct constitutional acts. One must not be used as a silent substitute for another.
3. Institutional Accountability and individual Accountability may coexist. Neither may be used to erase the other.
4. No provision may depend on a Canon 006 role, field, state, threshold, or workflow to make its constitutional meaning clear.

Section 2. Source and translation

1. The English text is the Source of Truth.
2. The Simplified Chinese text is the official translation and must preserve equal Claim Strength.
3. Normative terms must retain explicit correspondence across both texts.

Section 3. Revision

1. Every constitutional claim remains open to Evidence and legitimate challenge.
2. Revision requires a reasoned record and explicit review.
3. No constitutional claim may be changed through silent editing.
4. A later edition requires explicit owner approval under the applicable publication standard and must preserve visible version history.

Version history

Version	Date	Status	Change
1.0	2026-07-29	Founding Edition	First approved and formally published constitutional baseline; future revisions must preserve the reasoned record, bilingual Claim Strength, and Canon boundaries